

HOMEATLAS PRIVATE AGREEMENT

California Master Service Agreement

Continuing service terms

- **MSA version:** ca-msa-v1-draft
- **Effective date:** [AGREEMENT DATE]
- **Service Provider:** [LEGAL COMPANY NAME], a California limited liability company ("SqueegeeKing")
- **Business address:** [LEGAL BUSINESS ADDRESS]
- **Notice email:** [LEGAL NOTICE EMAIL]
- **Phone:** [LEGAL PHONE]
- **Customer:** [CUSTOMER NAME]
- **Customer email:** [CUSTOMER EMAIL]

1. Agreement structure

This Master Service Agreement ("MSA") sets the continuing terms under which SqueegeeKing may provide exterior cleaning and related property-care services to Customer. Each property and each accepted plan is governed by a separate Property Service & Quote Agreement ("Property Agreement") that identifies the property, service cadence, visit-by-visit scope, first-visit rate, continuing rate, optional work, payment rail, initial term, renewal terms, and cancellation terms.

SqueegeeKing is required to perform only work shown in an accepted Property Agreement, a later customer-approved add-on, or another signed service order. A website estimate, sales conversation, Jobber draft, technician observation, or prior course of dealing does not add work to the accepted scope. If the documents conflict, the Property Agreement controls property details, scope, cadence, rates, add-ons, payment authorization, renewal disclosures, and cancellation disclosures; this MSA controls the remaining relationship terms.

2. Scheduling and access

Service dates are scheduling targets unless the Property Agreement expressly says otherwise. Weather, smoke, unsafe conditions, access restrictions, equipment conditions, water restrictions, illness, or events outside reasonable control may require a different date. SqueegeeKing will use commercially reasonable efforts to notify Customer and reschedule.

Customer will provide lawful and reasonably safe access to accepted work areas, unlock agreed gates, secure pets, disclose known hazards or fragile conditions, and complete any preparation stated in the Property Agreement. Interior work requires an adult authorized by Customer to provide access unless another written arrangement is accepted. SqueegeeKing may pause, reschedule, or decline work that cannot be performed safely or lawfully.

3. Service standard and scope limits

SqueegeeKing will perform accepted services in a professional manner consistent with the written scope and ordinary industry practices for the surface and condition presented. Unless the Property Agreement expressly includes them, restoration, stain removal, hard-water remediation, paint or construction-debris removal, scratch removal, screen repair, seal failure, mineral correction, and correction of pre-existing damage are not included.

Exterior surfaces can be affected after service by weather, irrigation, construction, animals, vegetation, traffic film, or other new conditions. SqueegeeKing does not promise that a cleaned surface will remain clean for a fixed period unless a written service guarantee says so.

4. Service concerns and re-service

Customer should report a reasonably discoverable service concern within three calendar days after the affected visit through the private HomeAtlas portal, the notice email, or the published company phone. A delayed report does not waive a right that cannot legally be waived or a concealed issue that could not reasonably have been discovered sooner.

SqueegeeKing may inspect the affected area and, when the concern results from a failure to perform the accepted scope, will use a reasonable re-service, correction, credit, or refund of the affected line item as the first remedy. This section does not limit rights or remedies that California law does not permit the parties to limit.

5. Personnel and property documentation

SqueegeeKing may use trained employees or properly insured service partners and remains responsible for managing the accepted scope. Personnel may take reasonable before-and-after or condition photographs for service verification, safety, quality control, and issue resolution. Customer-identifying photos will not be used in public marketing without separate permission.

Customer will identify unusually delicate, historic, damaged, coated, tinted, loose, or recently installed surfaces before work begins. SqueegeeKing will promptly report material damage it knows it caused. Neither party is responsible under this MSA for pre-existing conditions or damage caused solely by the other party's negligence or intentional conduct.

6. Prices, taxes, and changes

This MSA creates no price by itself. The applicable Property Agreement controls the first-visit rate, continuing per-visit rate, visit-specific prices, first-year estimate, included services, optional services, taxes, credits, and payment timing.

Additional or changed work requires a customer-approved written or electronic add-on, change order, or replacement Property Agreement that states the work and price before it is scheduled or charged. SqueegeeKing will not silently expand a signed scope or retroactively increase a signed price.

7. Payment rails and authorization

The Property Agreement identifies the selected payment rail. For a card-on-file account, Customer enters payment details only on Stripe's hosted page after completing the agreement. SqueegeeKing and HomeAtlas retain Stripe references and payment status, not the full card number. Saving a payment method does not itself collect a payment.

Any later off-session card charge requires the applicable signed authorization, an accepted and scheduled service, the price or permitted price range shown to Customer, and HomeAtlas billing safety checks. Optional or additional work requires Customer approval before it is scheduled or charged. A trusted cash-or-check account, when expressly selected and accepted by SqueegeeKing, is not automatically charged and is subject to the due date and receipt process in the Property Agreement.

Customer remains responsible for undisputed amounts for completed accepted work. The parties will try in good faith to correct provider processing errors, duplicate charges, misapplied credits, or good-faith disputes before collection escalation.

8. Electronic records and communications

The parties consent to use electronic records and signatures for this transaction. Transactional messages about quotes, signatures, scheduling, service, payment, account security, and cancellation may be sent to the email address or phone number Customer supplies. Marketing text consent is separate, optional, and not a condition of purchasing services.

HomeAtlas may retain the signed documents, DocuSign completion certificate, accepted property snapshot, recorded consent, required notices, service history, payment-provider references, and provider event history as the transaction record. Customer may

request a retainable copy through the portal or notice email.

9. Term, cancellation, suspension, and termination

The Property Agreement states its initial term, renewal behavior, cancellation method, any disclosed treatment of an introductory or enrollment discount, and the effect of cancellation on already scheduled or completed work. A statutory cancellation or rescission right controls over a conflicting contract term.

Customer may request cancellation through the private HomeAtlas portal under **Member care to Request membership cancellation**, by emailing [LEGAL NOTICE EMAIL], or through another method stated in the Property Agreement. HomeAtlas records the request time. SqueegeeKing will not require Customer to give a reason or complete an unnecessary retention step before a valid cancellation request is processed.

SqueegeeKing may suspend future service for an overdue undisputed amount, unsafe or unlawful access, abusive conduct, or a material uncured breach after reasonable notice when notice is practicable. Either party may terminate for the other party's material breach if the breach is not cured within a reasonable period stated in the notice. Termination does not erase payment obligations for accepted work already completed.

10. Automatic renewal and material changes

If a Property Agreement renews automatically or continues until canceled, its renewal terms, renewal period, charge amount or range, charge frequency, and cancellation methods must be presented clearly and accepted affirmatively before enrollment. SqueegeeKing will provide a retainable acknowledgment and will preserve evidence of consent for the period required by applicable law.

SqueegeeKing will provide required renewal reminders, annual reminders, and material- or fee-change notices through an allowed channel. A fee change is prospective only and will include the new amount or method of determining it, the effective date, and a direct cancellation method. Customer may reject a future change by canceling before it takes effect, subject to payment for accepted work already completed.

11. Allocation of responsibility

Each party is responsible for direct harm to the extent caused by that party's negligence, willful misconduct, fraud, or material breach. To the fullest extent California law permits in a consumer agreement, neither party is liable for remote, speculative, or consequential loss that was not reasonably foreseeable when the Property Agreement was accepted.

Any proposed monetary limitation in the released template must be conspicuous and affirmatively accepted by the owner as a business term. Nothing in this MSA excludes liability or a consumer remedy that cannot lawfully be excluded, including liability arising from fraud, willful misconduct, gross negligence, or a statutory right that cannot be waived. Later California counsel review may revise this clause in a new version.

12. Dispute process and governing law

Before filing a lawsuit other than a time-sensitive request for relief or a qualifying small-claims matter, the parties will send a short written description of the dispute and allow at least 15 days for a good-faith effort to resolve it. Customer may send notice through the portal or to [LEGAL NOTICE EMAIL]; SqueegeeKing may send notice to Customer's latest supplied email and mailing address.

California law governs without regard to conflict-of-law rules. This draft does not require private arbitration and does not waive a party's right to use a court or small-claims process. The owner-release candidate intentionally omits a mandatory venue and prevailing-party fee clause; later counsel may recommend them in a new version.

13. General terms

Neither party's delay in enforcing a term waives that term. If a provision is unenforceable, it will be enforced to the maximum lawful extent and the remaining provisions remain effective. Neither party may assign this agreement in a manner that materially reduces the other party's rights; SqueegeeKing may assign it as part of a merger, reorganization, financing, or sale of substantially all related business assets if the assignee assumes the agreement.

This MSA, the accepted Property Agreement, approved add-ons, incorporated disclosures, and any later signed amendments are the complete agreement about the covered services. A later signed writing changes an earlier term only to the extent it expressly says so. Headings are for convenience. Electronic counterparts together form one agreement. Terms concerning payment, records, disputes, and accrued rights survive termination to the extent needed to give them effect.

14. Acceptance

Customer acknowledges receiving this MSA together with the separate Property Service & Quote Agreement and any applicable Notice of Cancellation, having an opportunity to review them, and choosing to sign electronically through DocuSign.

- **Customer signature and date:** supplied by DocuSign
- **Service Provider acceptance:** supplied by the released DocuSign template